LAMPLEIGH V. BRATHWAIT

[1615] EWHC KB J17, 80 ER 255

Key Principle: The Exception to the Rule of Past Consideration (Implied Promise to Pay)

1. THE CORE LEGAL ISSUE

Does a promise to pay for a service already rendered (Past Consideration) create a binding contract if that service was originally performed at the express request of the promisor?

2. FACTUAL MATRIX

- The Request: The defendant, Thomas Brathwait, had killed a man (Patrick Mahume) and was facing the death penalty. He requested the plaintiff, Anthony Lampleigh, to exert his best efforts to obtain a royal pardon from the King.
- The Performance: Lampleigh acted upon this request, traveling at his own expense between London and Newmarket, and successfully obtained the pardon.
- The Promise: After the service was completed, Brathwait promised to pay Lampleigh £100 for his efforts.
- The Dispute: Brathwait promised to pay Lampleigh £100 for his efforts but later refused to pay.

3. ARGUMENTS

- The Defendant (Brathwait): Argued that because the pardon was obtained before the promise of £100 was made, the consideration was "past." Under the general rule of contract law, past consideration is not sufficient to support a contract.
- The Plaintiff (Lampleigh): Argued that he performed the work specifically because Brathwait asked him to, implying that the effort would be rewarded.

4. THE RATIO DECIDENDI (The Ruling)

Before the case reached the high-level legal debate we study today, a jury had to determine the facts.

- The Findings: The jury found in favor of the plaintiff (Lampleigh). They confirmed as a matter of fact that Brathwait had requested the service and that Lampleigh had performed the "labour and endeavour" to get the pardon

- The Bench Composition and Vote

The panel was split, with a 3-to-1 majority in favor of the plaintiff, Lampleigh.

• Favoured the Plaintiff (3 Judges): Chief Justice Sir Henry Hobart and two other judges. They held that the prior request by Brathwait "coupled" itself with the later promise, making it a binding contract rather than a "naked" promise (nudum pactum).

• Dissented (1 Judge): Justice Warburton. He was of the opinion that Lampleigh's performance was insufficient. He argued that Lampleigh hadn't shown he did anything specific to earn the pardon other than "riding up and down" the country.

- Judgement : The Court of King's Bench found for the Plaintiff.

While the court acknowledged the general rule that "past consideration is no consideration," it carved out a vital exception:

"A mere voluntary courtesy will not have a consideration to uphold an assumpsit [promise]. But if that courtesy were moved by a suit or request of the party that gives the assumpsit, it will bind."

- The Award: The jury awarded Lampleigh £100 in damages (the exact amount Brathwait had promised)

5. THE ' LAMPLEIGH RULE' / THE THREE-PRONG TEST (Modern Application)

- Prior Request: The act must have been done at the promisor's request.
- Anticipation of Reward: Both parties must have understood that the act would be remunerated (it wasn't a social favor).
- Legal Enforceability: The payment must be legally recoverable had it been promised in advance.

6. SIGNIFICANCE IN INDIAN LAW

It's worth noting that in Section 2(d) of the Indian Contract Act, 1872, the definition of consideration specifically includes the phrase "has done or abstained from doing," which means past consideration is generally valid in India, unlike the stricter general rule in English Law.

Feature	English Law (general)	English Law (LAMPLEIGH)	Indian Law [Sec 2 (d)]
past consideration	invalid	valid (if requested)	always valid
reasoning	the consideration must be concurrent or future to form a binding contract	implied promise at request	The Law states that if an act **has been done** or abstained from doing at the desire of the promisor.

KEY TAKEAWAYS

1. The "Past Consideration" Problem

• Question: "Past consideration is no consideration."

The general English rule (that consideration must move at the time of the promise) and how this case created a critical exception. The case states that if an action was done at the desire of the promisor , is agreed upon to be remunerated and is legally enforceable ; then the consideration shall be considered valid if the prior request could be coupled up with the later promise .

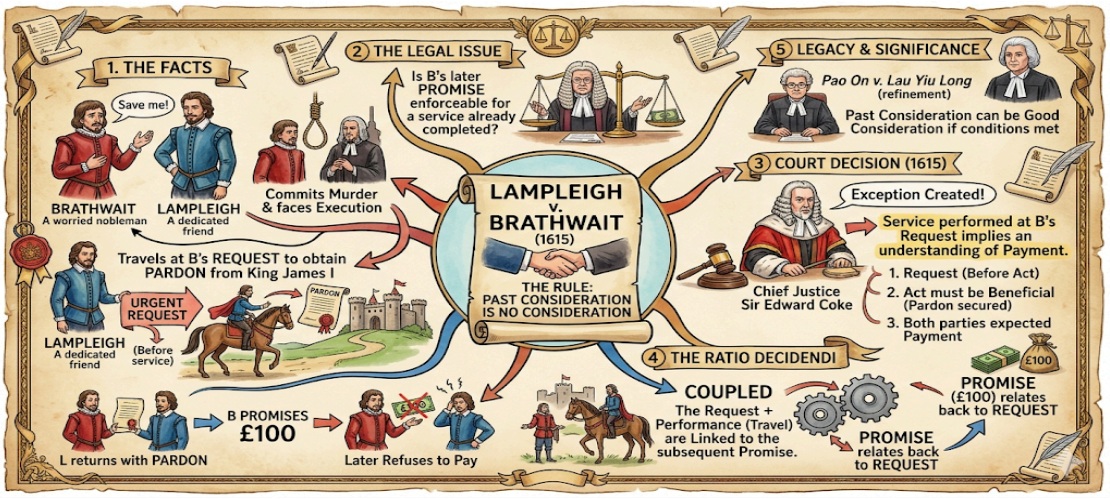
2. The "Volunteer" vs. "Requested" Distinction

• Question: Distinguish between a 'voluntary' act and an 'act done at request' in the law of consideration.

In this case, we have a clear distinction between what a voluntary act and an act done at the request of another is.

While taking the case into consideration, Hypothetically, if Lampleigh Had heard about the death sentence of Brathwait And got the Pardon without Brathwait asking , he wouldn't have won the case as this would have been considered as a pure voluntary act/Gift.

But as we see in the case that the pardon was requested upon the desire of Brathwait And hence it was not considered a voluntary act.

3. The Doctrine of Implied Promise

The case also focuses on the 'request' element. If a person asks another to do something that isn't usually free (Like professional, legal work or in this case, travelling to get a royal pardon) , the law implies that a 'reasonable sum' will be paid the subsequent promise of £100 , simply fixed the amount for the implied promise.